

The dated sequence of 3 to 28 May 2024

WC/2024/227 · Shepherd v Workers' Compensation Regulator · internal working document, 22 August 2026 · not for service, and not for a filing in this form

Every entry is taken from a document in the Respondent's own disclosure at the source stated, or is an admitted fact. The pay thread and the complaint track ran in the same twenty-five days. That is a matter of dates and nothing more is asserted here.

When	What	Source
Fri 3 May, 9:39 am	Payroll (Ms E Grant) to the Line Manager, copied to the Appellant: "Please submit an AVAC to correct these shifts for each fortnight"	Payroll disclosure p.5
Fri 10 May, 2:21 pm	The Appellant to Payroll, asking whether the Line Manager has responded	Payroll disclosure p.5
Mon 13 May	The Appellant lodges the complaint with the Ethical Standards Unit. Later determined to be a public interest disclosure	Admitted, Form 24 ¶20
Mon 13 May	Called the Switchboard 15 minutes before shift to advise he was unwell (the Line Manager's later account)	FRMS p.36
Mon 13 May, 8:21 am	Payroll to the Appellant: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager..."	Payroll disclosure p.5
Tue 14 May, 12:08 pm	The Line Manager to the Appellant, "Sick leave 14.05.24"	FRMS
Wed 15 May, 11:47 am	Ms S Marriott to Logan Switch, "Respiratory Nurse Educators"	Respondent's disclosure
Wed 15 May, 1:07 pm	The Line Manager to the Director , "Cory Shepherd - emergent leave 15.05.24"	FRMS p.39
Wed 15 May, 1:15 pm	The Appellant to the Line Manager and Logan Switch, copied to the department, the Director and LBH_HR, "Office Hours and Departmental Directives"	11 Jun disclosure
Wed 15 May, 3:35 pm	The Appellant to MetroSouthESU, CO Complaints and LBH_HR , "Urgent: Issues Affecting Workplace Safety and Conduct Logan Hospital Switchboard", attaching the complaint form. Human Resources is a direct addressee	11 Jun disclosure p.8
Wed 15 May, 3:41 pm	LBH_HR to Mr B Punch, Ms E McGinley and Ms A McNamee , six minutes later: "Please see email from Corey Shephard to ESU and CO Complaints regarding Chloe Taylor"	11 Jun disclosure
Wed 15 May, 6:23 pm	The Director to the Appellant, copied to the Line Manager, directing that the email be retracted, with recall instructions	FRMS p.37 · admitted, Form 24 ¶21
Wed 15 May, 7:09 pm	The Appellant to the Director, attaching Ms Stibbard's business-hours email	FRMS p.17
Thu 16 May, 11:43 am	Ms E McGinley to the Director and Ms T Smith, copied to Mr Punch, Mr Pritchard and Ms McNamee, attaching the complaint form	11 Jun disclosure p.7
Fri 17 May, 9:30 am	The Line Manager to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	Respondent's disclosure
Fri 17 May, 1:20 pm	The Line Manager to Ms A McNamee, "as requested" - her account of 13, 14 and 15 May, and of what she says staff had told her about the Appellant	FRMS pp.36-37
Wed 15 May	Attendance Variation and Allowance Claim 16328886 submitted by the Line Manager. Completed 16 May 2024	myHR, MSH Item 11
Mon 20 May, 11:03 am	Ms S Marriott to Logan Switch, "FW: Respiratory Nurse Educators"	Respondent's disclosure
Mon 20 May, 2:05 pm	The Appellant to the Line Manager, providing his recommendations on the respiratory nurse educators	Respondent's disclosure
Mon 20 May, 4:07 pm	The Director to LBH_HR, "FW: Roster Concerns"	Respondent's disclosure
Mon 20 May, 4:30 pm	The Line Manager's reply to the Appellant on the respiratory nurse educators	Respondent's disclosure
Tue 21 May, 12:33 pm	The Line Manager to the Appellant: "I am still I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC for next pay run"	FRMS p.46 · Form 24 ¶46
Tue 21 May, 2:53 pm	The Director to the Appellant, "RE: Office Hours and Departmental Directives"	FRMS p.21
Tue 28 May, 8:01 and 8:02 am	The AVAC and the Validation of Claims form scanned one minute apart on the employer's device	Scanner titles, employer's own files

When	What	Source
Tue 28 May, 8:36 am	The Line Manager to the Appellant, copied to the Director: "please sign and return... so I can escalate for delegate approval"	FRMS p.46
Tue 28 May	Attendance Variation and Allowance Claim 16450619 submitted. Effective 30 March 2024. Recorded Part Completed, 30 May 2024	myHR · admitted, Response ¶38

What the dates show

The answer to the question is yes. The Attendance Variation and Allowance Claim of **28 May 2024** came after the complaint to the Ethical Standards Unit of 13 May, after Human Resources circulated notice of that complaint on 15 May at 3:41 pm, after the direction to retract the email of 15 May at 6:23 pm, after the Line Manager's account to Human Resources of 17 May at 1:20 pm, and after the respiratory nurse educators exchange of 15 and 20 May. The payroll request it answered had been outstanding since 3 May.

Two things sit inside that period and are worth holding on to, because neither requires anything to be alleged. **First**, an Attendance Variation and Allowance Claim was submitted on 15 May and completed on 16 May, six days before the Appellant was told that payroll confirmation was awaited before one could be submitted. **Second**, the request of 3 May was made to the Line Manager on a thread on which the Appellant was copied, so he could see, throughout, what had been asked of her.

Who was asked, and who was not

The Appellant made the complaint on 13 May 2024 and sent it again on 15 May at 3:35 pm to the Ethical Standards Unit, Code of Conduct Complaints and **LBH_HR as a direct addressee**. Human Resources therefore knew because he told them. Six minutes later LBH_HR circulated it to Mr Punch, Ms McGinley and Ms McNamee. On 16 May Ms McGinley circulated the complaint form to the Director and Ms Smith. On 17 May at 1:20 pm the Line Manager gave Ms McNamee an account "as requested", which included what she says other staff had said about the Appellant.

No communication from Ms McNamee to the Appellant appears anywhere in the record, on any subject, at any date. Across both parties' disclosure the first communication to him from Human Resources after 13 May 2024 is LBH_HR's email of 9 October 2024 enclosing the abandonment-of-employment letter. On the material held, the subject of the complaint was asked for an account within two days and the person who made it was not asked at all, and the account given about him was never put to him.

■ **Absence from a disclosure bundle is not the same as absence in fact.** A telephone call would not appear. Before this is stated anywhere, it should be put as a question to the witness rather than asserted, and checked against the Appellant's own records for the period.

■ Why this must not become a reprisal argument on the pay

The temptation is to say the pay was delayed *because of the complaint*. Do not. The cost is out of all proportion to the gain.

Motive is not an element. Section 32(5)(a) asks whether the management action was reasonable and taken in a reasonable way, judged on what was done. The dated sequence produces whatever inference it produces on its own, and it cannot be answered. An assertion about why can be.

It opens section 32(5)(b). Injuries connected with the worker's expectation or perception of management action are not compensable. The Respondent has not pleaded that limb. Language of punishment or retaliation about the pay would hand it over from the Appellant's own side.

It raises his own standard of persuasion. An allegation of that seriousness attracts *Briginshaw*. The delay is admitted; the reason for it is not, and does not need to be.

And it brings in the email of 17 May 2024. That document is the Line Manager's account to Human Resources of the three days of 13 to 15 May and of what she says other staff reported to her about the Appellant. It is adverse. It is presently a document nobody has any reason to open. Building an argument that depends on the events of that week is what gives them the reason.

Reprisal is already pleaded, and confined, at Stressor 1(f) - the direction to retract, within 48 hours of the disclosure. That is where it belongs and it should stay there. Stressor 2 runs on the routing and the twenty-five days, which are admitted and need nothing else.

■ And the reason this one cuts both ways

The procedural point cannot be made without both documents being read. The Appellant's own email of 15 May 2024 at 3:35 pm describes "*the corrupt conduct, harassment, intimidation, inconsistent work attendance, and fraudulent practices*" of the Line Manager. The Line Manager's email of 17 May contains her account of what staff are said to have told her about him. Both are already in the Respondent's disclosure and neither can be unsaid.

The word used in the Appellant's email is the one word that must never appear in this track. It is on the record as history and is not to be repeated, adopted or explained. If it is put to him, the answer is that the complaint speaks for itself and he does not adopt any characterisation in it today.

This is therefore not a new particular and no amendment should be sought for it. It is evidence within the existing case on whether management action was taken in a reasonable way, and it belongs in the witness outline and in cross-examination, put as fact and question rather than as complaint.

How to use the sequence properly

State the dates. Put the 3 May request, the 13 May confirmation that nothing had been corrected, the 15 May claim completed in a day, the 21 May reply and the 28 May submission in one list, and stop. If the Commission draws something from what else appears on those dates, it will do so without being asked, and the Appellant will not have carried the burden of asking.